

**THE CORPORATION OF THE
TOWNSHIP OF LANARK HIGHLANDS**

By-Law No. 2016-1394
Repeals By-Law No. 2013-1224

**A BY-LAW TO REGULATE TO OPERATION OF OFF-ROAD VEHICLES WITHIN THE
TOWNSHIP OF LANARK HIGHLANDS**

BEING a by-law to regulate the operation of off-road vehicles on all highways under the jurisdiction of the Township of Lanark Highlands;

WHEREAS Section 191.8(3) of the Highway Traffic Act, R.S.O. 1990, Ch. 8, as amended, provides that a municipality may pass by-laws:

- i) Permitting the operation of off-road vehicles on any highway within the municipality that is under the jurisdiction of the municipality or on any part or parts of such highway.
- ii) Prescribing a lower rate of speed for all Off-Road Vehicles by regulating on any highway within the municipality that is under its jurisdiction, or on any part or parts of such highway, including prescribing different rates of speed for different highways or parts of highways.

NOW THEREFORE, the Council of the Corporation of the Township of Lanark Highlands enacts as follows:

1. Jurisdiction

- 1.1 This by-law regulates the use of off-road vehicles on all highways under the jurisdiction of the Township of Lanark Highlands, a lower tier municipality, only.
- 1.2 This by-law does NOT provided authority for:
 - a) Provincial highways
 - b) County of Lanark, upper tier municipality, highways

- c) Private roads
- d) Any highways situated outside the Township of Lanark Highlands.

2. Definitions

In this By-law:

- 2.1 "Off-Road Vehicle" shall mean an off-road vehicle within the meaning of the Off-Road Vehicles Act, O. Reg. 316-03, S.1., as amended
- 2.1 "Highway" shall have the same meaning as defined in the Highway Traffic Act.

3. Regulation of Off-Road Vehicles on Highways

- 3.1 An off-road vehicle shall not be operated on a highway unless it meets the equipment requirements of Section 7 to 15 of O.Reg 316/03 – Operation of Off-Road Vehicles on Highways as amended by O. Reg. 135/15.
- 3.2 An off-road vehicle shall not be driven at a rate of speed greater than:
 - a) 20 kilometres per hour, if the speed limit established under the Highway Traffic Act or municipal by-law for that part of the Highway is not greater than 50 kilometres per hour;
 - b) 50 kilometres per hour, if the speed limit established under the Highway Traffic Act or municipal by-law for that part of the Highway is greater than 50 kilometres per hour;
- 3.3 In addition, any all-terrain vehicle operating on a highway shall comply with the following provisions:
 - a) An Off-Road vehicle shall have visible reflective strips maintained on all four sides of the vehicles;
 - b) An Off-Road vehicle shall NOT have chains or studs on its tires.
- 3.4 Off-Road Vehicles shall be driven on the shoulder of the highway in the same direction as the traffic, using the same side of the highway.

- 3.5 Despite subsection 3.5, the Off-Road Vehicle may be driven on the roadway in the same direction as the traffic using the same side of the highway if:
- (a) there is no shoulder; or
 - (b) the shoulder of the highway is obstructed and cannot be used by the Off-Road Vehicle.

4. Penalties

- 4.1 Any person who contravenes the Highway Traffic Act or its Regulations or this by-law, is guilty of an offence and upon conviction is liable to a fine as provided for in the Provincial Offences Act.

5. Ultra Vires

- 5.1 Should any sections of this by-law, be declared by a court of competent jurisdiction to be ultra vires, the remaining sections shall nevertheless remain valid and binding.

6. Where any by-law, passed prior to this by-law, conflicts with the terms of this by-law, this by-law shall prevail.

7. EFFECTIVE DATE

ENACTED AND PASSED this 23rd, day of August, 2016.



Brian Stewart, Mayor





Denis Goulet, CAO/Clerk

